

tor but also of the trustee, will not, it is said, be so considered for the purposes of the power (*f*); for a matter of personal confidence is not to be extended beyond the express words and clear intention of the settlor; and in this case, the settlor may have meant the power to be exercised exclusively by the executors, whom the trustee had himself named,

and not by a person who is executor of the trustee
[*604] * by operation of law only. This, however, is a

narrow construction, and the liberality of modern times may not improbably hold that, if a power be given to executors, the settlor must be taken to have contemplated generally every one whom the law invests with that character.

6. **Power to "executors" "trustees."**—A power limited to "executors" or "sons in law" may be exercised by the survivors so long as the plural number remains (*a*), and if a power be limited to a number of "trustees," we may reasonably conclude that, whether they have any estate or not — *i.e.* whether the power be an adjunct to the trust or collateral to it, it may be exercised by the surviving trustees. And a power given to "executors" will, if annexed to the executorship, be continued to the single survivor (*b*); and so a power given to "trustees" will, as annexed to the estate and office, be exercisable by the single survivor (*c*); but it cannot be exercised by one trustee in the lifetime of the other who has not effectually disclaimed (*d*). And it has been said that if a power to vary the rights of parties be communicated to the "*trustees for the time being*," it cannot be exercised by a single trustee (*e*). And where there was a trust for sale, but no sale was to be made without the consent of the testator's *sons and daughters*, and he left seven sons and daughters, and one died, it was held that a sale with the

(*f*) See *Cole v. Wade*, 16 Ves. 44; *Stile v. Tomson*, Dyer, 210, a; *Perk. sect. 552*; *Moore*, 61, pl. 172; *Sugd. Powers*, 129, 8th edit.

(*a*) *Sugd. Powers*, 128, 8th edit.

(*b*) *Sugd. Powers*, 128, 8th edit; *Houell v. Barnes*, Cro. Car. 382; *Brassey v. Chalmers*, 4 De G. M. &

G. 528, reversing the decision of the Master of the Rolls, 16 Beav. 231.

(*c*) *Lane v. Debenham*, 11 Hare, 188.

(*d*) *Lancashire v. Lancashire*, 2 Ph. 664.

(*e*) *Lancashire v. Lancashire*, 2 Ph. 664.